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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

June

23, 2026

CASE NUMBER

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MOTION

Demurrer

to First Amended Cross-Complaint

MOVING PARTY

Defendant

and Cross-Complainant 5757 Wilshire

OPPOSING PARTY

Cross-Defendant

Catherine Zarrabi

MOTION

This case stems from a slip and fall while exiting a medical office.

On March 27, 2025, Plaintiff Reginald Brewington ("Plaintiff") brought suit against Defendants 5757 Wilshire, LLC and SAG-AFTRA Management ("Defendants") alleging a single cause of action for slip and fall (negligence). Defendant 5757 Wilshire, LLC ("5757 Wilshire" or "Landlord") subsequently cross-complained against Catherine Zarrabi, D.C. ("Zarrabi" or "Tenant.") The operative First Amended Cross-Complaint ("FAXC") alleges four causes of action for (1) indemnity; (2) apportionment of fault; (3) declaratory relief; and (4) express indemnity.

Zarrabi now demurs to all four causes of action alleged in the FAXC on the basis that 5757 Wilshire failed to state facts sufficient to constitute causes of action under Code of Civil Procedure section 430.10, subdivision (e).

5757 Wilshire timely filed an opposition to the demurrer and objection to evidence supporting Zarrabi's opposition, and 5757 Wilshire replies.

MEET

AND CONFER REQUIREMENT

Code of Civil Procedure section 430.41, subdivision (a) requires that “Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The statute further requires: “As part of the meet and confer process, the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., § 430.41, subd. (a)(1).) “The party who filed the complaint, cross-complaint, or answer shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint, cross-complaint, or answer could be amended to cure any legal insufficiency.” (Ibid.) “The parties shall meet and confer at least five days before the date the responsive pleading is due. (Code

Civ. Proc. § 430.41, subd. (a)(2).) Where parties are not able to meet within this timeframe, the demurring party can obtain an automatic 30-day extension by filing a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. (Ibid.) “The demurring party shall file and serve with the demurrer a declaration stating either” the means by which the parties met and conferred, or that the party who filed the pleading subject to demurrer failed to respond to the meet and confer request. (Id. at subd. (a)(3).) A finding that the meet and confer process was insufficient cannot be grounds for the court to overrule or sustain a demurrer. (Id. at subd. (a)(4).)

Here, a 30-day extension was granted. (Nachiappan Decl. ¶ 2.) Zarrabi’s counsel provided a declaration indicating she called and emailed 5757 Wilshire’s counsel regarding the demurrer but “the only resolution would be a complete dismissal” and that no resolution was reached. (McAulay Decl. ¶ 6). While the parties exchanged emails, no in-person, telephone, or video conference discussion took place on whether an agreement could be reached to resolve objections raised in the demurrer. (Nachiappan Decl. ¶¶ 1-5 and Ex. A thereto.)

Thus, parties have failed to strictly comply with the meet and confer requirement. Notwithstanding the absence of an in-person, telephone, or video-conference meeting, the Court finds the parties' email exchange reflects substantial compliance with Section 430.41, subdivision (a). In addition, the Court finds that further meet and confer efforts are unlikely to resolve issues raised in the demurrer and therefore proceeds to the merits of the demurrer.

LEGAL STANDARD

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts "[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 ["in considering the merits of a demurrer, however, "the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

Further, in ruling on a demurrer, a court must "liberally construe" the allegations of the complaint “with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) “This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant.” (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, “[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

ANALYSIS

1. DEMURRER

A.

OBJECTION

TO EVIDENCE

5757 Wilshire objects to Zarrabi’s submission of and reliance on the lease agreement to support its demurrer, because the lease agreement was not attached to Plaintiff’s Complaint or 5757 Wilshire’s Cross-Complaint, and therefore falls outside the four corners of the Complaint.

The Court agrees. “A demurrer challenges the sufficiency of the complaint by raising questions of law.” (ABF Capital Corp. v. Berglass (2005) 130 Cal.App.4th 825, 833.) Thus, when ruling on a demurrer, courts may generally consider only those allegations contained within the four corners of the complaint or matters of which it may properly take judicial notice. (Id. at pp. 833-834.)

But a demurrer is not the appropriate procedure for determining the truth of disputed facts and “may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable.” (Joslin v. H.A.S. Ins. Brokerage (1986) 186 Cal.App.3d 369, 374.)

Because the entirety of the lease agreement was not attached to the Complaint or Cross-Complaint, the Court may not generally consider it, unless a party properly requests and the Court grants the request to take judicial notice of it. Here, no party has requested the Court take judicial notice of the lease agreement, nor is it readily apparent that there exists any statutory basis for the Court to take judicial notice of a private agreement. (See Evid. Code, § 452.)

In reply, Zarrabi argues that an action based on an alleged breach of written contract must either set out the terms of the contract verbatim in the body of the complaint or attach the written contract and incorporate it by reference. Zarrabi then argues, without any legal authority, that the Court may consider the entirety of the agreement it has attached as evidence to its demurrer.

As a threshold matter, whether the Complaint adequately alleges a cause of action for breach of contract is a separate issue from whether the Court may consider extrinsic evidence of the lease agreement.

Regarding the second argument, Zarrabi has not provided any legal authority for the Court to consider extrinsic evidence of the parties' actual agreement on a demurrer, which tests only the sufficiency of the allegations, not the veracity of the allegations vis-à-vis the evidence.

As for whether the Complaint adequately pleads a breach of contract cause of action, “[t]he correct rule is that a plaintiff may plead the legal effect of the contract rather than its precise language.” (Miles v. Deutsche Bank National Trust Co. (2015) 236 Cal.App.4th 394, 402.) In Miles, the Court of Appeal noted “where a written instrument is the foundation of a cause of action it may be pleaded in haec verba by attaching a copy as an exhibit and incorporating it by proper reference.” (Ibid., emphasis in original & quoting Wise v. Southern Pacific Co. (1963) 223 Cal.App.2d 50, overruled on other grounds.) Thus, attaching a copy of the written agreement and/or pleading the contents of a written agreement verbatim are two ways of pleading a breach of contract claim, but not “the exclusive means of pleading a contract.” (Ibid., emphasis in original). To wit, a “plaintiff's failure either to attach or to set out verbatim the terms of the contract was not fatal to his breach of contract cause of action.” (Ibid.)

Thus, the Court does not find that Plaintiff’s Complaint (or 5757 Wilshire’s derivative Cross-Complaint) fails due to a failure to either attach a copy of the lease agreement or plead all of its terms in haec verba.

Accordingly, because the lease agreement falls outside the four corners of the pleadings, the Court may not properly consider such extrinsic evidence on demurrer, which tests only the sufficiency of the pleadings alone.

B.

FAILURE TO STATE A CAUSE OF ACTION

i. Duty Regarding Common Areas

Zarrabi first demurs to all causes of action on the grounds that the parties' lease agreement defines Tenant's Premises as the interior of the suite only, allocating responsibility for all common areas to the Landlord.

However, as discussed above, the Court cannot properly consider the lease agreement or its terms in ruling on a demurrer.

As such, the Court declines to sustain the demurrer on the basis of the lease agreement.

ii. First and Second Causes of Action – Indemnity and Apportionment of Fault

The elements of a cause of action for indemnity require "(1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is contractually or equitably responsible." (Expressions at Rancho Niguel Assn. v. Ahmanson

Developments, Inc. (2001) 86 Cal.App.4th 1135, 1139, emphasis in original.)

Apportionment of fault allows a concurrent tortfeasor to obtain partial indemnity from other concurrent tortfeasors on a comparative fault basis. (American Motorcycle Assn. v. Superior Court (1978) 20 Cal.3d 578, 598.)

The claim requires a showing that independent negligent actions of a number of tortfeasors are each a proximate cause of a single injury. The injured person may sue one or all of the tortfeasors to obtain a recovery for his injuries. (Id. at p. 587.)

The elements of a negligence cause of action are the existence of a legal duty of care, breach of that duty, and proximate cause resulting in injury. The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998, citation omitted.) "Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm." (Annocki v. Peterson Enterprises, LLC (2014) 232 Cal.App.4th 32, 37.)

Here, 5757 Wilshire alleges:

5. Plaintiff's action, the principal action herein, alleges, among other things, tortious conduct entitling Plaintiff to compensatory damages against Cross-Complainant 5757 Wilshire, LLC. Plaintiff was allegedly injured as described in the Complaint on file herein and Cross-Complainant 5757

Wilshire, LLC herein contends and continues to contend that it is in no way actionably liable for the events and occurrences, tortious and otherwise, described in Plaintiff's Complaint, a copy of which is attached hereto as Exhibit "A" and is incorporated herein by reference as though fully set forth in this place.

6. If it is true that Plaintiff was injured or damaged as alleged in the Complaint, which supposition is not admitted, then Cross-Complainant 5757 Wilshire, LLC is informed and believes and thereupon alleges the fact to be that the incident and all of the injuries and damages complained of were caused directly and proximately by Cross-Defendants thereby breaching duties owed to Cross-Complainant 5757 Wilshire, LLC.

7. That by reason of the foregoing, if the Plaintiff is entitled to recover against Cross-Complainant 5757 Wilshire, LLC on the basis of any of the allegations alleged, then the responsibility of Cross-Complainant 5757 Wilshire, LLC, if any, is vicarious in nature and, Cross-Complainant 5757 Wilshire, LLC, as a passive and secondary tortfeasor, is entitled to judgment over and against Cross-Defendants, and each of them, to the extent of such recovery by the Plaintiff in that it was the active and primary negligence of said Cross-Defendants, and each of them, which caused Plaintiff to be injured and/or damaged.

[…]

10. Cross-Complainant 5757 Wilshire, LLC is informed and believes and thereupon alleges that each of the Cross-Defendants was negligently or tortiously responsible, in whole or in part, in some proportional relation to themselves and to Cross-Complainant 5757 Wilshire, LLC for the injuries, if any, suffered by Plaintiff. That, in the event Cross-Complainant 5757 Wilshire, LLC be judged jointly liable with Cross-Defendants, each Cross-Defendant herein be required to pay to Cross-Complainant 5757 Wilshire, LLC a sum equal to the proportionate share of monetary payments, if any there be, made to Plaintiff.

11. Further, that if Cross-Complainant 5757 Wilshire, LLC is found partially responsible to Plaintiff for damages and if Cross-Complainant 5757 Wilshire, LLC is required to pay Plaintiff any amount in excess of the degree of comparative fault of Cross-Complainant 5757 Wilshire, LLC, then Cross-Complainant 5757 Wilshire, LLC is entitled to recover from Cross-Defendants, and each of them, the amount of said excess paid.

(FAXC ¶¶ 5-7; 10-11.)

5757 Wilshire alleges that, to the extent Plaintiff was harmed and entitled to recover against 5757 Wilshire, 5757 Wilshire is entitled in turn to recover against Zarrabi, due to Zarrabi's responsibility and/or tortious conduct.

Zarrabi argues that the facts as pled do not show that Tenant owed a duty of care to Plaintiff in the location of the slip and fall as described by Plaintiff in his complaint and that no fault of Tenant was alleged as to the cause of action. Indeed, Plaintiff’s original complaint alleges:

6. That on or about March 30, 2023, plaintiff was leaving the medical office owned and managed by defendants. As he stepped from the front building, he slipped and fell. It was a rainy day and no mats were available and the condition of the place where plaintiff was exiting was extremely slippery, causing his slip-and-fall accident.

(Complaint ¶ 6, emphasis added.)

Notwithstanding, the Court does not find that the pleadings preclude liability on the part of Zarrabi as a matter of law. For example, the Court does not know, based on the pleadings alone, the layout of the medical office building in question. If, for instance, Zarrabi’s office leads directly to the street, then Zarrabi may indeed control the premises where Plaintiff allegedly fell. Nor can the Court determine at this stage of the litigation the factual issue of whether the entirety of the lease agreement either precludes or imposes liability on the part of Zarrabi.

As such, liberally construing the FAXC, as the Court is required to do on a demurrer, the Court finds 5757 Wilshire has adequately stated a cause of action for indemnity against Zarrabi. Whether Zarrabi is actually liable in indemnity to 5757 Wilshire is a question of fact to be resolved at later stages of the litigation.

iii. Third Cause of Action – Declaratory Relief

"Any person interested under a written instrument, excluding a will or trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property […] may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract." (Code Civ. Proc., § 1060.) "The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment. The declaration may be had before there has been any breach of the obligation in respect to which said declaration is sought.” (Ibid.)

Causes of action for declaratory relief require “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909.) Because declaratory relief operates prospectively, and not merely for the redress of past wrongs, (Snyder v. California Ins. Guarantee Assn. (2014) 229 Cal.App.4th 1196, 1207), a plaintiff or cross-complainant may prevail on a claim for declaratory relief, regardless of whether they have yet suffered any damages.

However, a court may refuse where its declaration or determination is not necessary or proper at the time under all the circumstances. (Code Civ. Proc., § 1061.) The object of the declaratory relief statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues. (See Hood v. Superior Court (1995) 33 Cal.App.4th 319, 324; Cal. Ins. Guarantee Assn. v. Superior Court (1991) 231 Cal.App.3d 1617, 1624; General of America Ins. Co. v. Lilly (1968) 258 Cal.App.2d 465, 471.) Declaratory relief is “unnecessary and superfluous” where issues invoked in that cause of action are already fully engaged by other causes of action. (Hood, supra, 33 Cal.App.4th at p. 324.)

Here, 5757 Wilshire alleges:

13. An actual controversy has arisen and exists between Cross-Complainant, 5757 Wilshire, LLC and Cross-Defendants, and each of them, for which Cross-Complainant 5757 Wilshire, LLC has no adequate or speedy remedy at law in that Cross-Complainant 5757 Wilshire, LLC asserts that it is entitled to be indemnified by Cross-Defendants, and each of them, and the Cross-Defendants deny that the Cross-Complainant 5757 Wilshire, LLC is entitled to such indemnification.

(FAXC ¶ 13.)

Zarrabi demurs to the third cause of action for declaratory relief on the ground that because the other underlying tort theories fail, so too must the request for declaratory relief. But as discussed above, the Court overrules Zarrabi's demurrer to the first and second causes of action. Therefore, the Court similarly overrules Zarrabi's demurrer to the third cause of action for declaratory relief.

iv. Fourth Cause of Action – Express Indemnity

In Rossmoor Sanitation, Inc. v. Pylon, Inc., the California Supreme Court held: “the question whether an indemnity agreement covers a given case turns primarily on contractual interpretation, and it is the intent of the parties as expressed in the agreement that should control. When the parties knowingly bargain for the protection at issue, the protection should be afforded. This requires an inquiry into the circumstances of the damage or injury and the language of the contract; of necessity, each case will turn on its own facts.” (Rossmoor Sanitation, Inc. v. Pylon, Inc. (1975) 13 Cal.3d 622, 633.) An indemnity agreement may provide for indemnification against an indemnitee's own negligence, but such an agreement must be clear and explicit and is strictly construed against the indemnitee. (Id. at p. 632.)

Here, 5757 Wilshire alleges:

15. On or about, April 6, 2017, Catherine Zarrabi, D.C., entered into a Lease agreement with 5757 Wilshire, LLC. According to pertinent paragraphs of said Lease, Catherine Zarrabi, D.C., was required to indemnify and hold harmless, 5757 Wilshire, LLC and was required to purchase liability insurance naming 5757 Wilshire, LLC as additional insureds. Specifically, the pertinent clauses in said agreement are as follows:

Article 10.1 – Indemnification and Waiver: 10.1 Indemnification and Waiver. To the extent not prohibited by law, Landlord, its partners, trustees, ancillary trustees and their respective officers, directors, shareholders, beneficiaries, agents, servants, employees, and independent contractors (collectively, "Landlord Parties") shall not be liable for any damage either to person or property or resulting from the loss of use thereof, which damage is sustained by Tenant or by other persons claiming through Tenant. Tenant shall indemnify, defend, protect, and hold harmless Landlord Parties from any and all loss, cost, damage, expense and liability (including without limitation court costs and reasonable attorneys' fees) incurred in connection with or arising from any cause in, on or about the Premises or any acts, omissions or negligence of Tenant or of any person claiming by, through or under Tenant, its partners, and their respective officers, agents, servants, employees, and independent contractors (collectively, "Tenant Parties"), in, on or about the Project, either prior to, during, or after the expiration of the Lease Term, provided that the terms of the foregoing indemnity shall not apply to the gross negligence or willful misconduct of Landlord or the Landlord Parties. Should Landlord be named as a defendant in any suit brought against Tenant in connection with or arising out of an event covered by the foregoing indemnity, Tenant shall pay to Landlord its costs and expenses incurred in such suit, including without limitation, its actual professional fees such as appraisers', accountants' and attorneys' fees. Further, Tenant's agreement to indemnify Landlord pursuant to this Section 10.1 is not intended and shall not relieve any insurance carrier of its obligations under policies required to be carried by Tenant pursuant to the provision of this Lease, to the extent such policies cover the matters subject to Tenant's indemnification obligations; nor shall they supersede any inconsistent agreement of the parties set forth in any other provision of this Lease. The provisions of this section shall survive the expiration or sooner termination of this Lease with respect to any claims or liability occurring prior to such expiration or termination.

Article 10.3 – Tenants Insurance: Tenant shall maintain the following coverages in the following amounts: 10.3.1 Commercial General Liability Insurance covering the insured against claims of bodily injury, personal injury and property damage arising out of Tenant's operations, assumed liabilities or use of the Premises, including a Commercial General Liability endorsement covering the insuring provisions of this Lease and the performance by Tenant of the indemnify agreements set forth in Section l 0.1 of this Lease, for limits of liability not less than: (i) Bodily Injury and Property Damage Liability - $3,000,000 each occurrence and $3,000,000 annual aggregate, and

(ii) Personal Injury Liability - $3,000,000 each occurrence and $3,000,000 annual aggregate.

16. On the date of Plaintiff's incident, March 3, 2023, Plaintiff was at the Premises to see Dr. Catherine Zarrabi. The Subject Building where Plaintiff's incident occurred is 5757 Wilshire (the "Project" in the lease.)

17. At all times pertinent to Plaintiff's cause of action, the above lease agreement was in full force and effect. Furthermore, Cross-Complainant 5757 Wilshire, LLC has performed all conditions precedent and obligations to said agreement, if any, except those obligations Cross-Complainant 5757 Wilshire, LLC was prevented or excused from performing, if any, and that the damages, injuries and losses claimed herein by Plaintiff, if any there were, were within the scope of the agreement between Cross-Complainant 5757 Wilshire, LLC and Cross-Defendants.

18. Cross-Complainant 5757 Wilshire, LLC is informed and believes and thereupon alleges that Cross-Defendant Catherine Zarrabi, D.C., breached said Lease by failing to defend and indemnify Cross-Complainant 5757 Wilshire, LLC and/or by failing to procure the required insurance naming Cross-Complainant 5757 Wilshire, LLC as an additional insured.

19. Liability, if any, for the damages claimed in the Plaintiff's Complaint rests solely on the Cross-Defendants, and only secondarily on

Cross-Complainant 5757 Wilshire, LLC, if at all, and if Cross-Complainant 5757 Wilshire, LLC is held liable to the Plaintiff, Cross-Defendants will be obligated to defend, indemnify and hold harmless Cross-Complainant 5757 Wilshire, LLC from any and all losses, expenses, and attorney's fees as required by the terms of the agreement.

(FAXC ¶¶ 15-19.)

Zarrabi argues that the cause of action for express indemnity fails because the "Indemnification and Waiver" section of Article 10.1 of the parties' lease agreement is illegal in purportedly shifting Landlord's common area premises liability to Tenant and to the extent Landlord seeks to use it to waive Landlord's own negligence.

Specifically, Zarrabi argues that the claim is barred by "California law invalidating the pleaded indemnity/waiver provisions as applied to Landlord's own premises liability in common areas and against public policy." (Demurrer, p. 2.) 5757 Wilshire opposes the validity of the provision as an issue of fact that cannot be decided on demurrer.

Civil Code section 1668 provides: "All contracts which have for their object, directly or indirectly, to exempt anyone from responsibility for his own fraud, or willful injury to the person or property of another, or violation of law, whether willful or negligent, are against the policy of the law." (Civ. Code § 1668.)

Despite its broad language, however, section 1668 only applies to contracts that involve the “public interest.” (See Tunkl v. Regents of Univ. of Cal. (1963) 60 Cal.2d 92, 96; Cregg v. Ministor Ventures (1983) 148 Cal.App.3d 1107, 1111.) The public interest requirement applies to ordinary negligence, but not violation of law such as a cause of action for negligence per se. (Capri v. L.A. Fitness International, LLC (2006) 136 Cal.App.4th 1078, 1083). Statutory violations void exculpatory clauses, pursuant to Civil Code section 1668, without any additional public interest analysis. (See Epochal Enterprises, Inc. v. LF Encinitas Properties, LLC (2024) 99 Cal.App.5th 44, 60.)

Whether a contract involves the “public interest” involves analyzing the Tunkl factors, which are as follows: (1) It concerns a business of a type generally thought suitable for public regulation; (2) the party seeking exculpation is engaged in performing a service of great importance to the public, which is often a matter of practical necessity for some members of the public; (3) the party holds himself out as willing to perform this service for any member of the public who seeks it, or at least for any member coming within certain established standards; (4) as a result of the essential nature of the service, in the economic setting of the transaction, the party invoking exculpation possesses a decisive advantage of bargaining strength against any member of the public who seeks his services; (5) in exercising a superior bargaining power the party confronts the public with a standardized adhesion contract of exculpation, and makes no provision whereby a purchaser may pay additional reasonable fees and obtain protection against negligence; (6) as a result of the transaction, the person or property of the purchaser is placed under the control of the seller, subject to the risk of carelessness by the seller or his agent. (Tunkl, supra, 60 Cal.2d at pp. 98-101.)

The ultimate test is whether the exculpatory clause affects the public interest, not whether all of the characteristics that help reach that conclusion are satisfied." (Health Net of Cal., Inc. v. Dept. of Health Services (2003) 113 Cal.App.4th 224, 238.)

However, lease agreements generally involve simply a matter "of interpreting a contract; that both parties are free to contract; that the relationship of landlord and tenant does not affect the public interest; that such a provision affects only the private affairs of the parties." (Barkett v. Brucato (1953) 122 Cal.App.2d 264, 276.) Such agreements generally exempt the landlord from "passive negligence" but not "active" or "willful" negligence. (Id. at pp.

276, 277, 279.)

Notwithstanding, Zarrabi argues that the lease agreement at issue here does implicate the public interest because (1) it is a commercial lease agreement involving property that is generally open to the public, which is where a member of the public was injured and (2) the Landlord has a statutory, nondelegable duty to maintain the safety of common areas, pursuant to Code of Civil Procedure section 1714.

But resolution of the Tunkl factors requires a factual analysis that far exceeds the scope of the pleadings, including whether and to what extent the remaining clauses in the lease agreement contextualize or otherwise impact the Court's analysis of Article 10.1, whether and to what extent Tenant had control over the area in which Plaintiff slipped and fell.

Because a demurrer merely tests the legal sufficiency of the allegations in a complaint (Lewis, supra, 235 Cal.App.4th at p. 388), whether the indemnification provision is unenforceable as applied to the facts of this case is a merits issue and goes beyond the scope of a demurrer based on the four corners of the pleading and judicially noticeable matters.

As such, the Court overrules Zarrabi's demurrer to the fourth cause of action on grounds that the indemnity provision is barred by California law and against public policy.

CONCLUSION AND ORDER

For the reasons stated, the Court overrules Zarrabi's Demurrer in its entirety, and orders Zarrabi to file an Answer to the FAXC on or before July 7, 2026.

Zarrabi shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: June 23, 2026 _____/s/______________________

Michael E. Whitaker

Judge of the Superior Court